

Defendant California Department of Fish and Wildlife's (CDFW) motion to bifurcate the bench trial for the liability phase of the inverse condemnation cause of action is GRANTED. The damages portion will be separately heard before a jury.

The motion to bifurcate the threshold issues on the applicability of and immunity under Government Code sections 818.4 and 821.2 is GRANTED, to be heard concurrently with the liability phase as to inverse condemnation. These issues must be decided by the court in advance of any trial on the underlying tort actions. These issues are potentially dispositive as to CDFW and common to all plaintiffs. It serves judicial economy as well as efficiency for the parties to have these issues decided sooner than later, and there is no prejudice hearing these questions of law concurrently with the required bench trial on inverse condemnation liability.

Plaintiffs, in opposition, propose that any bifurcation be limited to bifurcating all liability and damages with representative plaintiff groups. The Court declines to adopt this request as it is outside the scope of Defendant's motion. Plaintiffs are free to bring their own motion to bifurcate.

At the conclusion of the court trial, a jury trial will be scheduled on the remaining issues. No other orders are made at this time with regard to trial structure or management, including CDFW's specific proposal of three phases.

The Court will sign the order lodged along with the motion on July 10, 2026.

26CV-02396 Petition of: Ramona Rivero

Order to Show Cause Re: Name Change

Appearance required. Proof of publication was filed July 22, 2026. Absent objection at the time of the hearing, or legal cause why Petitioner should not be permitted to change her name, the petition will be GRANTED.

26CV-02453 Emily McCarthy vs Mercy Medical Center Merced, et al.

Demurrer to Complaint

Defendant generally and specially demurs to Plaintiff's fourth cause of action. Defendant's request for judicial notice is GRANTED. Defendant Dignity Health dba Mercy Medical Center Merced's demurrer to Plaintiff's complaint is OVERRULED.

At the demurrer stage, Plaintiff sufficiently alleges facts to constitute a cause of action pursuant to Civil Code section 51.9. The facts as alleged in the complaint regarding the unwelcome comments and touching are sufficient to support an allegation of severe conduct under Civil Code section 51.9.

In addition, the cause of action is not uncertain. There are no ambiguous or unintelligible allegations.